

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN IRELAND

Complete Community Opposition How-To

This guide uses the Irish terms and bodies you'll actually run into — planning permission, submissions/observations, An Bord Pleanála, EIA and Appropriate Assessment, judicial review, section 50B cost protection — and explains each in plain words the first time. A major reform (the Planning and Development Act 2024) is being phased in and will rename some of these, so always check the current position.

INTRODUCTION & FRAMEWORK

The clearest recent proof that an Irish community can win outright is a whole industry stopped by law. When an Australian company, Tamboran Resources, arrived around 2011 to frack for gas in the north-west — the Lough Allen basin under Leitrim, Sligo, and Roscommon — a farming and rural community that had never run a campaign taught itself how. Groups like **Love Leitrim** and the **North West Network Against Fracking** built the case that fracking threatened their water, their land, and their tourism-and-farming way of life; they gathered the science, won over their neighbours, contacted every TD, gathered an 11,000-strong petition, and showed up in the Dáil and Seanad. They got behind the most watertight of the bills on offer — a private member's bill from a local Sligo-Leitrim TD — and, in the face of a government motion to block it, pushed it through. On **6 July 2017 the President signed the Petroleum and Other Minerals Development (Prohibition of Onshore Hydraulic Fracturing) Act 2017**, banning onshore fracking across the Republic. Six years after Tamboran arrived, a rural community had made it illegal — nationwide.

The farming community of Leitrim — Love Leitrim and the North West Network Against Fracking — that made onshore fracking illegal nationwide drew on tools that give Irish communities an unusually clear set of entry points, built on **participation and appeal**. Anyone can make a **submission or observation** on a planning application, and — distinctively — a third party can then **appeal the council's decision to An Bord Pleanála (ABP)**, which re-decides the case afresh. Beyond that sits **judicial review** in the High Court, backed by strong **EU-law grounds** (the EIA and Habitats Directives and the Appropriate Assessment rules for Natura 2000 sites) and a **cost-protection regime** (section 50B and the Aarhus "not prohibitively expensive" rule) that can shield an environmental challenger from ruinous bills. But these tools have real limits, and this guide states them plainly. Ireland's planning system is built to deliver development; there is a powerful national housing and infrastructure imperative; some project types now have **curtailed appeal rights**; judicial review is legally technical and time-limited; and the **Planning and Development Act 2024** is tightening the rules on challenges. So most fights are won not by a national ban but by a **refusal, a quashing, conditions, delay, or a redesign** — each a real result worth fighting for.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. An Irish project needs **planning permission** (open to your submission and, usually, a third-party appeal to ABP); it must survive **judicial review** for legal error; where it touches a **Natura 2000** site or the environment, it runs into **EU-law grounds**; and — for a big enough threat — it can be met with a **political and legislative** campaign. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **For most projects, the submission-and-appeal route to An Bord Pleanála is your first, best, and cheapest lever** — ABP re-decides afresh and refuses projects.
- **If there's a legal error — especially under EU environmental law — judicial review can quash the permission**, and cost protection can keep it affordable.
- **For a whole practice or a national threat, political and legislative pressure can win** — the fracking ban proves it.
- **But the system favours development, some appeal rights are curtailed, and JR is technical and time-limited** — so move fast, get advice early, and count refusals, quashings, conditions, delay, and redesign as wins.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the submission, the ABP appeal, judicial review, EU-law grounds, cost protection — and **run every front at once**: the documents, the participation, the appeal, the courts, the movement, the press. That combination won the fracking ban.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Most projects need **planning permission** from the **local council**, which anyone can make a **submission** on, and whose decision a third party can usually **appeal to An Bord Pleanála (ABP)** — the national board that **re-decides the case afresh**. Some large projects go a different route (and some, like certain large-scale residential and the new urban development zones, have **curtailed appeal rights** — check yours). The **High Court** hears **judicial review**. And EU environmental law binds all of them. Know which route your project is on, and where your entry point is.

How a Project Moves — and Where You Jump In

The application and submissions. The developer applies to the council; anyone can make a **submission or observation** for a small fee. *Your opening — and it's essential*: make a detailed, evidenced submission; you generally must have done so to appeal later.

The council decision and the ABP appeal. The council decides; a third party can **appeal to ABP**, which re-decides afresh. *Your opening — often the best*: a strong appeal to ABP, which refuses projects on planning and environmental grounds.

Judicial review. *Your opening*: challenge ABP's (or the council's) decision in the **High Court** for legal error — strictly time-limited, so move fast.

Construction. *Your opening*: breaches of conditions and enforcement.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the permission not final or under challenge, licences not granted, financing not closed: whatever's missing is the soft spot. **Who's paying** — financiers, and any public funding whose conditions

can be scrutinised.

Who's Supposed to Be Watching

Each is an ally or an arena. The **council** decides the application and takes your submission. **An Bord Pleanála** re-decides on appeal. The **High Court** quashes unlawful permissions on judicial review. The **European Commission** enforces EU environmental law against Ireland, and the **Court of Justice** can rule the state in breach. The **Office of the Planning Regulator** oversees the system, and the **Ombudsman** takes maladministration complaints. And Ireland's **strong community and environmental networks, and a free press** are the forces that reach furthest — the combination that banned fracking.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you have a third-party ABP appeal, whether there's an EU-law legal error, and how strong public and political feeling is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Submission to the council	15–35%	during application	low (small fee)	On record; conditions; refusal
Appeal to An Bord Pleanála	30–55%	months	low	Project refused or conditioned (re-decided afresh)
Judicial review (EU-law grounds)	30–55%	1–2 yr	low–mod (cost protection)	Permission quashed for legal error
Complaint to the European Commission	20–45%	1–4 yr	low	Ireland found in breach; pressure
Political / legislative campaign	25–55%	months–yr	low	A practice banned or a project dropped (fracking)
Everything together (appeal + EU-law error, public roused)	45–65%	months–2 yr	low–mod	Refused, quashed, delayed, banned
Everything together (housing/infrastructure priority)	20–45%	months–2 yr	low–mod	Delayed, conditioned, redesigned

The levers that move the needle most are the **third-party appeal to ABP** and **judicial review on EU-law grounds**, backed — for a big threat — by political and legislative pressure. The fracking ban shows the ceiling (a whole practice outlawed). Most fights are smaller, and a refusal, a quashing, conditions, delay, and redesign all count as wins.

*On cost: a submission costs a small fee; an ABP appeal is cheap; and **cost protection** (section 50B and the Aarhus "not prohibitively expensive" rule) can shield an environmental judicial review from ruinous bills — a crucial Irish advantage. Pro-bono lawyers and national networks bring the bigger cases.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this permission, this legal error, this appeal — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers.

2. Where is it, and what does it touch? Get the footprint and lay it over a **Natura 2000** site, a river or bog, the coast, farmland, communities. **A Natura 2000 site or a water/habitat impact is your sharpest legal lever** (through Appropriate Assessment and the Habitats Directive), so this map is your most important document.

3. What stage is it at, what's the route, and what's the next deadline? Is the application in for submissions? Which route is it on — ordinary planning (with a third-party ABP appeal) or a curtailed-appeal route? Has permission issued (starting the strict judicial-review clock)? These openings are time-bound.

4. What does it still need that it lacks? A permission not final, licences not granted, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbours, local groups, national environmental networks (An Taisce and others), sympathetic TDs. The fracking ban united a region with the Dáil.

What this looks like in real life. A community learns an incinerator, quarry, data centre, or wind or housing scheme is planned that threatens a river or a Natura 2000 site. The five questions yield: a named developer; a site with an EU-law trigger (the sharp lever); an application open for submissions, on an ordinary route with an ABP appeal; a project still needing permission; and a coalition of neighbours and national networks. That's the pattern — make a strong submission, appeal to ABP, and ready a judicial review on EU-law grounds.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and the fracking ban was built on the science of the threat to water and land. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the application and its EIA (EIAR) and any Appropriate Assessment, the council's decision and conditions, the Natura 2000 and water studies. Ireland's environmental-information (AIE) rights let you demand what isn't public. Then read them hard for flaws — an understated impact, an ignored alternative, an inadequate Appropriate Assessment (a strong EU-law ground), a Natura 2000 site brushed over.

Layer two: the ground truth. Dated, located photographs and video of the site, the river, the bog, the habitat — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of EU protections. Lay the project over every Natura 2000 site, protected habitat, and water body it touches, so each legal lever is visible. Walking into ABP or the High Court with the application, the assessment, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The application, the EIAR and Appropriate Assessment, the council decision and conditions, the Natura 2000 and water studies** — from the council and ABP; force out the rest under the AIE rules (8A).
- **The planning route and appeal rights** — to know whether you have a third-party ABP appeal.

- **Ownership and financing** — company records and any public funding.
- **The EU-protections map** — Natura 2000 sites, protected habitats, and water bodies, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Love Leitrim showed a rural community can outorganise an industry. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the land and water, a few tireless organisers, and respected local figures.

Form a group and reach the national networks. A named community group, linked early to national environmental organisations (An Taisce and others) that bring standing, expertise, and the ABP and judicial-review know-how. Hold meetings where people see the evidence.

Work the politics — this is Ireland's distinctive strength. TDs and councillors are reachable and accountable; the fracking ban was won partly by contacting every TD and getting behind the right bill. Cultivate your representatives, and for a big threat, aim at the political and legislative level.

Bring in the lawyers — early, and mind the clock. Public-interest and planning lawyers who run ABP appeals and judicial reviews, and who can secure cost protection. Judicial review is strictly time-limited, so engage early.

Build to last. Irish fights can run for years (the fracking campaign took six). Build clear roles, a shared archive, a way to decide together, and a plan for the toll — and keep the coalition and the political work strong, which is how Ireland is won.

STEP 4: LEGAL CHALLENGES, THE ABP APPEAL & JUDICIAL REVIEW

Law is one of Ireland's sharpest levers, with a distinctive third-party appeal and strong EU-law grounds — and cost protection that makes them usable.

Submit First — It Unlocks the Appeal

Everything downstream is stronger if you made a detailed **submission** on the application: you generally **must have done so to appeal**, and your submission is the foundation of the case. Make it evidenced and specific, especially on EU-law grounds.

The Third-Party Appeal to An Bord Pleanála

Ireland's distinctive lever: for most projects a **third party can appeal the council's decision to An Bord Pleanála**, which **re-decides the case afresh** — not merely reviewing the council but making its own decision. This is often your best and cheapest route to a **refusal or tougher conditions**. (Check whether your project is on a curtailed-appeal route.)

Judicial Review and EU-Law Grounds

If a permission is unlawful, challenge it by **judicial review** in the **High Court**, where it can be **quashed for legal error**. Ireland's strongest grounds are **European**: an inadequate **Appropriate Assessment** or breach of the **Habitats or EIA Directives**. Two things make this usable: **cost protection** (section 50B and the Aarhus "not prohibitively expensive" rule) can shield you from ruinous bills, and a parallel **complaint to the European Commission** opens a second front. But judicial review is **legally technical and strictly time-limited** — get a lawyer early and watch the clock.

The Political and Legislative Route

For a whole practice or a national threat, the **political and legislative** route can win outright — as the fracking ban did. Contact your TDs, get behind a watertight bill, and build cross-party support.

The Honest Limits

Straight talk: the ABP appeal, judicial review, and EU-law grounds are real and strong, but the system favours development, some appeal rights are curtailed, judicial review is technical and time-limited, and the 2024 Act is tightening challenges. So use the strong tools — the submission, the ABP appeal, judicial review with cost protection, EU-law grounds, the European Commission, and political pressure — and count a refusal, a quashing, conditions, delay, a redesign, and a legislative ban as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal error. Not "the project is bad" but *"the Appropriate Assessment was inadequate — a breach of the Habitats Directive that can quash the permission."*

An appeal becomes a fresh decision. *"An Bord Pleanála should refuse this on planning and environmental grounds — and it decides afresh."*

A threat becomes a law. *"This whole practice threatens our water — and, as with fracking, it can be banned."*

The harm becomes a public story. *"The river, the bog, the land our community depends on — for a project decided over our heads."*

Match it to the venue: the objections to the council; the fresh case to An Bord Pleanála; the legal error to judicial review; the EU breach to the European Commission; the national threat to the Oireachtas; the human story to the press.

STEP 5: MEDIA STRATEGY

In Ireland, public and political attention is a real lever — the fracking ban was won in the local press and the Dáil together. A free press and strong community networks make the media front central.

Lead with people and place, not procedure. Not "the Appropriate Assessment was inadequate" but "the river, the bog, the land our community depends on — for a project decided over our heads." Use your strongest material: dated photographs, the map of the project over the Natura 2000 site, and named residents.

Work several audiences at once. Local press builds the pressure that moves councillors and TDs; national press and networks amplify; and European coverage reaches the Commission. Make it easy: captioned

photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And connect across struggles and to your representatives, which is how Ireland is won.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Environmental-information (AIE) request (to the council / ABP).

Subject: AIE request — [project].

"Under the Access to Information on the Environment rules, we, residents of [place], request the application, the EIAR and Appropriate Assessment, the decision and conditions, and the Natura 2000 and water studies for [project] at [location]. [Contact.]"

8B — Submission to the council.

Subject: Submission on [planning ref] — [project].

"We, residents of [place], object to [project]: [it damages this Natura 2000 site; the Appropriate Assessment is inadequate; it harms this river/bog]. We ask that permission be refused. [Attach evidence.]"

8C — Appeal to An Bord Pleanála.

Subject: Third-party appeal — [project], [council ref].

"We appeal the council's decision on [project] to An Bord Pleanála, on planning and environmental grounds: [specifics]. We ask the Board to refuse permission. [Attach evidence.]"

8D — Instructing a lawyer (judicial review).

Subject: Judicial review — [project].

"We instruct you to seek judicial review of the [ABP/council] decision on [project], on the grounds that [the Appropriate Assessment was inadequate / a breach of the Habitats or EIA Directive], and to secure cost protection under section 50B. Please advise urgently given the time limit. [Attach the decision and our evidence.]"

8E — Complaint to the European Commission.

Subject: Possible breach of EU environmental law — [project], Ireland.

"We report a possible breach of the Habitats/EIA Directives by [project] at [location], which damages the [named] Natura 2000 site without adequate Appropriate Assessment. [Attach evidence.]"

8F — To your TDs / councillors (political route).

Subject: [Project] — and the case for action.

"[Project] at [location] threatens [our water / habitat / community]. We ask you to [oppose it / support measures to prevent this class of project], as the Oireachtas did in banning fracking. [Attach evidence.]"

8G — Letter to the press.

Subject: [Community] moves to protect [river / bog / coast] from [project].

"For generations the people of [place] have lived beside [the river / the bog] at [location] — protected across Europe. Now [project] threatens it. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our river / bog / land]. In Leitrim, a rural community banned fracking nationwide — with submissions, the courts, and their TDs. With the ABP appeal, judicial review, EU-law grounds, and our representatives behind us, we have a real chance. Please join us: make a submission, contact your TD, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project, its route, and any EU-law trigger.** A Natura 2000 site or water impact is your sharpest lever; the route tells you if you have an ABP appeal.
2. **Make a detailed submission to the council (8B) — it unlocks the appeal.**
3. **Request the documents (8A) under the AIE rules, and read the assessment for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Appeal to An Bord Pleanála (8C); if the permission is unlawful, get a lawyer for judicial review with cost protection (8D) — mind the clock.**
6. **Contact your TDs and go public (8F/8H).** The fracking ban was won this way.

Even lean, those six use your rights, unlock the appeal, hit the courts and the politics, and keep it affordable.

WHEN THE SYSTEM IS TILTED

Ireland's tools are real, but the system favours development, and you must plan for it.

When housing or infrastructure is the priority. The imperative is powerful. Use the EU-law grounds and the ABP appeal, and aim for refusal, conditions, a quashing, delay, and redesign as real wins.

When appeal rights are curtailed. Some project types (large-scale residential, urban development zones) limit third-party appeals. Check your route early, and lean more on judicial review and EU-law grounds.

When judicial review is technical and the rules are tightening. JR is strictly time-limited and legally technical, and the 2024 Act is tightening challenges. Get a lawyer early, secure cost protection, and move

fast.

What still works, and it's a lot. The third-party ABP appeal that re-decides afresh; judicial review that quashes on EU-law grounds; cost protection that keeps it affordable; the European Commission; and a political route that has banned a whole practice.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Ireland has a documented history of planning-related corruption, so this matters.

How to spot it. Permissions against the planners' advice; rezonings that enrich the connected; assessments written for the developer; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Standards in Public Office Commission** oversees ethics; the **Office of the Planning Regulator** oversees the system; **An Garda Síochána** and the courts handle corruption. The **Ombudsman** takes maladministration complaints, and the **European Commission** acts where EU law is breached. And Ireland's **investigative press** has repeatedly exposed planning corruption.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the proper bodies and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the EU-law trigger and your route aims it; organising and the political work build the muscle; the ABP appeal and judicial review press the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its route, and any Natura 2000 trigger; make a detailed submission; request the records; photograph the baseline; get a lawyer and reach the national networks and your TDs.

In the thick of it (months): appeal to An Bord Pleanála; if the permission is unlawful, seek judicial review with cost protection; complain to the European Commission; work the politics and open the media front.

The long haul (months–years): carry the judicial review through, and — for a national threat — the legislative campaign; keep the movement alive; hold the line for a refusal, a quashing, conditions, delay, a redesign, or a ban.

FINAL ASSESSMENT

Stopping a destructive project in Ireland can be done — a rural community in Leitrim banned fracking across the whole Republic. Hold both truths. Ireland's tools are real and, in parts, distinctive: a submission anyone can make; a third-party appeal to An Bord Pleanála that re-decides afresh; judicial review that quashes on strong EU-law grounds; cost protection that keeps it affordable; the European Commission; and reachable, accountable politicians. And the constraints are real: a development-first system, a housing and infrastructure imperative, curtailed appeal rights for some projects, technical and time-limited judicial review, and a 2024 reform tightening challenges.

Here's the discipline that wins. Find the EU-law trigger — the Natura 2000 site, the water impact — and know your route, and pry loose the record. Make a detailed submission, then appeal to An Bord Pleanála, which decides afresh. If the permission is unlawful, seek judicial review on EU-law grounds with cost protection — and move fast, because the clock is strict. Work your TDs, and for a national threat, aim at the Oireachtas. Count a refusal, a quashing, conditions, delay, a redesign, and a legislative ban as wins. That's what Leitrim did — the submissions, the courts, and the politics together — turning a threatened region into a nationwide ban. So can you.